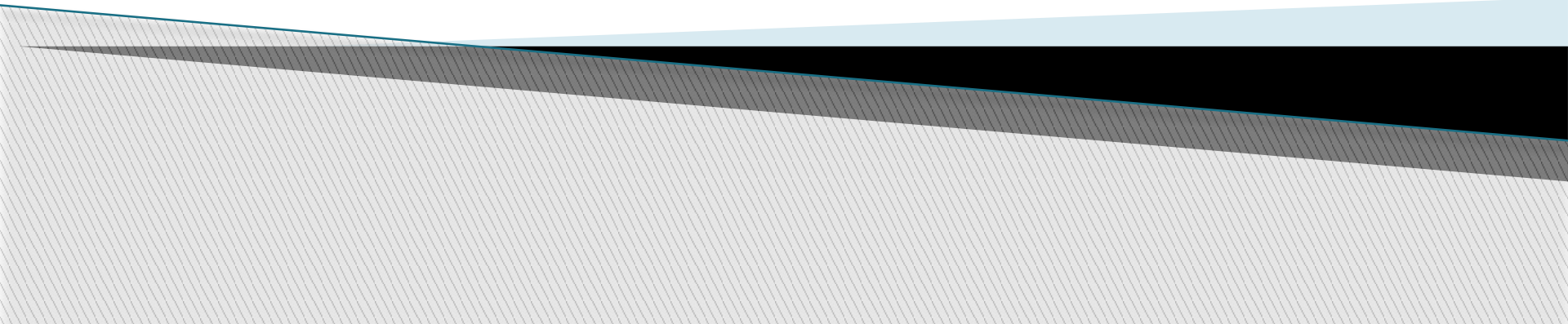
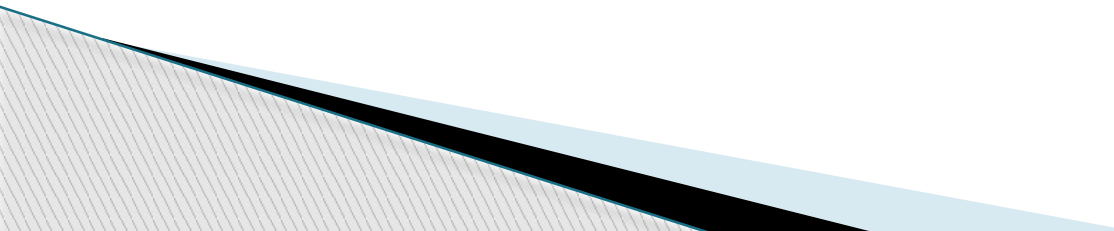


Business Documents: Registration, License, Certificates

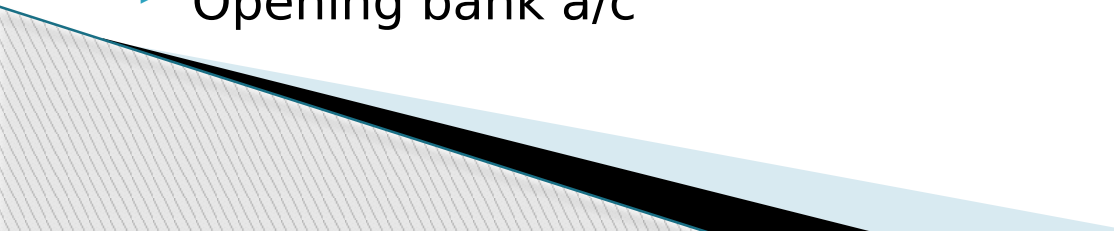


Learning Objectives

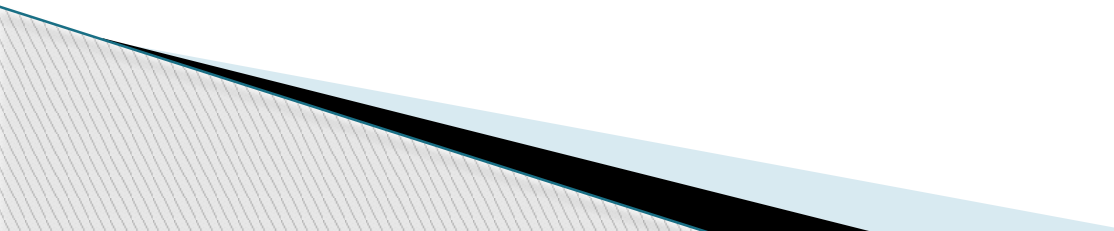
After studying this chapter, the students will be able to understand:

- ▶ Definition and concept of different documents used in the business
 - ▶ The process to get them
 - ▶ Important requirements that have to submit to get these documents.
- 

Chapter Outline

- ▶ Procedure and documents required to get trade license
 - ▶ Factory inspection license
 - ▶ Bonded warehouse license
 - ▶ BSTI License
 - ▶ TIN and VAT Registration
 - ▶ Export registration
 - ▶ Patent and Trademark registration
 - ▶ Export registration certificate
 - ▶ BOI registration
 - ▶ Permission from Deptt. of environment
 - ▶ Utility, gas, electricity and T&T connection
 - ▶ Membership of trade organisation
 - ▶ Opening bank a/c
- 

Introduction

- ▶ It is important to file the proper documentation when starting a new business venture.
 - ▶ A company uses documents to communicate, transact business and analyze its productivity.
- 



Business Documents



Trade License

- ▶ License can be defined as a written permission issued by concerned authority stating necessary particulars such as name, location, purpose of license, issue date, fees and so forth.
- ▶ In Bangladesh trade license is issued by local government. In city corporation areas like Dhaka, Chittagong, Rajshahi, Khulna, Sylhet, Narayangonj, Comilla, Gazipur and in other areas it will be issued by respective pourashava or union parishad.

Trade License

- ▶ The following documents for having a trade license issued, if you are willing to establish your business in a major city:
- ▶ Application with photos.
- ▶ Layout plan
- ▶ Enclose two 'No Objection Certificates' from two close neighbors.
- ▶ In case of limited company, AoA, MoA, and Incorporation Certificate issued by joint stock company, TIN
- ▶ no objection certificate from the Department of Environment

ঢাকা সিটি কর্পোরেশন, ঢাকা।
রাজস্ব বিভাগ (অফিস-০৫)
নগর ভবন, (১২ তলা), ঢাকা।
ফোন ৯-৯৫৫০৭৯০



লাইসেন্স ইস্যুর বিবরণ		
ওয়ার্ড নম্বর	ইস্যুর ক্রমিক নম্বর	ইস্যুর তারিখ
৫২	৫৪২৭	২৫/৮/১০



ট্রেড লাইসেন্স
(TRADE LICENCE)

No : 0533127



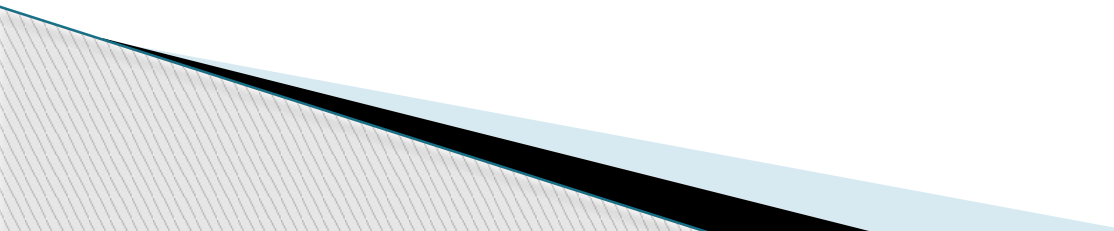
Dhaka City Corporation Ordinance 1983 (Ord. XL of 1983) এর Section 69 এর প্রদত্ত ক্ষমতাবলে সরকার প্রণীত ঢাকা সিটি কর্পোরেশন আদর্শ কর তফসিল ২০০২ এর ৬ নং অনুচ্ছেদ অনুযায়ী পেশা, ব্যবসা-বাণিজ্য এবং জীবিকা-কৃষ্টির উপর আরোপিত কর আদায়ের লক্ষ্যে নিম্নে বর্ণিত ব্যক্তি/প্রতিষ্ঠানের অনুকূলে এ ট্রেড লাইসেন্স ইস্যু করা হলো। যার কার্যকারিতার মেয়াদ ৪ এবং ৫ পৃষ্ঠায় উল্লিখিত সময় পর্যন্ত বলবৎ থাকবে।

- ১। মালিকের নাম : শ্রী সফরুল হক মন্ডল (এ/নতি-ডি(বক্স-১০))
 - ২। পিতা/স্বামীর নাম : শ্রী সফরুল হক মন্ডল
 - ৩। মাতার নাম : শ্রী সফরুল হক মন্ডল
 - ৪। মালিকের ঠিকানা :
বর্তমান বসবাসের ঠিকানা : হোজিং নং : ৫৮৩৮ নং ১৬ নং (৫৮৩৮ নং ১৬ নং) হোজিং নং/গ্রাম : কানাইপুর
রোড নং : ১০৬ (৫৮৩৮ নং ১৬ নং) হোজিং নং/গ্রাম : কানাইপুর রোড নং/পোস্ট অফিস : হাট নং ১৬
থানা : নাবাঙ্গা থানা : নাবাঙ্গা
ঢাকা : ১০৬ (৫৮৩৮ নং ১৬ নং) হোজিং নং/গ্রাম : কানাইপুর জেলা : ঢাকা
 - ৫। ব্যবসা প্রতিষ্ঠানের নাম : সফরুল হক মন্ডল (এ/নতি-ডি(বক্স-১০))
 - ৬। পরিশোধিত মূলধন (সিঃ কোম্পানীর ক্ষেত্রে) : টাকা
 - ৭। ব্যবসা প্রতিষ্ঠানের ঠিকানা : ৫৭/বিহুল-১০ (এ/নতি-ডি(বক্স-১০)) হোজিং নং/গ্রাম : কানাইপুর
 - ৮। ফোন ও ই-মেইল (যদি থাকে) : ৫৭/বিহুল-১০ (এ/নতি-ডি(বক্স-১০))
 - ৯। ব্যবসার ধরণ : এক্সপোর্ট ইমপোর্ট
 - ১০। আদর্শ কর তফসিল ২০০২ এর ক্রমিক নং : ২৫০০৮
 - ১০। ট্রেড লাইসেন্স/নবায়ন ফি (বার্ষিক) : টাকা (অনেক) : ২৫০০৮ (কথায়) : ২৫ হাজার ০০৮ টাকা
 - ১১। সাইনবোর্ড কর (বার্ষিক) : টাকা (অনেক) : ৯০০৮ (কথায়) : ৯ হাজার ০০৮ টাকা
 - ১২। ইস্যুকৃত চালান : ৫৪২৭
- লাইসেন্সধারীর নিকট হতে সকল বকেয়া পাওনা বিবিধ রশিদ নম্বর, তাং : ২৪/৮ এর মাধ্যমে আদায় করা হয়েছে।
(লাইসেন্সটি) ২৪/৮ নম্বর ডি, সি, আর, খইয়ের ২ পৃষ্ঠায় লিপিবদ্ধ করা হয়েছে।

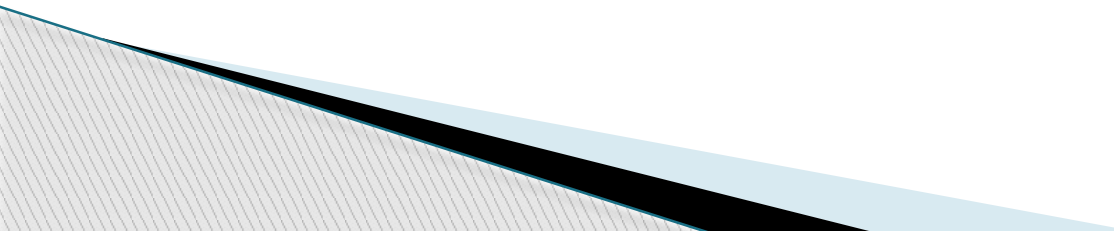
লাইসেন্স ও বিজ্ঞাপন উপায়কর্তার
(নাম ও পদবীসহ সীল)
উক্তব্যক্তি (আইসিএস)
লাইসেন্স ও বিজ্ঞাপন উপায়কর্তার
অফিস-০৫, (নগর ভবন) ১২ তলা
ঢাকা সিটি কর্পোরেশন

কর ও রাজস্ব
অফিস-০৫
(নাম ও পদবীসহ সীল)
খইসিএস ও বিজ্ঞাপন উপায়কর্তার
অফিস-০৫
ঢাকা সিটি কর্পোরেশন

Factory Inspection License

- ▶ This document should be taken to represent the minimum acceptable standard.
 - ▶ Compliance with these requirements will be checked during factory inspections.
 - ▶ After establishment of any factory, as per factories Act 1965 as in practice, of the present government.
- 

Factory Inspection License

- ▶ Documents required for factory Inspection License
 - ▶ Trade License.
 - ▶ Factory Lay out plan (Machineries).
 - ▶ Building Plan.
 - ▶ Application in prescribed Form.
- 

Bonded warehouse license

- ▶ A 100% export oriented industry will get the Bonded Warehouse License from custom authority.
 - ▶ This type of industry can reduce its cost by getting a Bonded Warehouse License.
 - ▶ They may import raw materials without duty free and zero Customs charge.
 - ▶ But condition is that you must export 100% of your products.
- 

You have to submit your application along with the following documents

- ▶ Application in a prescribed form.
- ▶ A Bond for Tk. 3 (Three) crore in a non-judicial stamp worth Tk. 1000.00.
- ▶ Trade License (updated).
- ▶ Updated Import Registration Certificate (industrial sector).
- ▶ Updated Export Registration Certificate.
- ▶ Memorandum of Articles and Certificate of Incorporation (in case of limited company).
- ▶ Tax Identification Number.
- ▶ VAT Registration Certificate.
- ▶ Bank Solvency Certificate.
- ▶ Membership certificate of BGMEA/BKMEA.
- ▶ A copy of house rent contract or ownership documents.
- ▶ No Objection Certificate from Department of Environment (in case of chemical exercise).
- ▶ No Objection Certificate from the Power Development Board (PDB).
- ▶ Registration Certificate from Board of Investment.
- ▶ Letter of recommendation from Board of Investment for issuing Bonded Warehouse License.

Continued....

- ▶ Treasury challan for payment of Taka 1000 as license fee.
- ▶ Nationality Certificate.
- ▶ Two copies of passport size photographs for every director/owner.
- ▶ Documents of machinery imports
- ▶ Two sets of layout plan of the factory.
- ▶ Certificate from the Fire Service Department.
- ▶ Declaration in a Tk. 100/- non-judicial

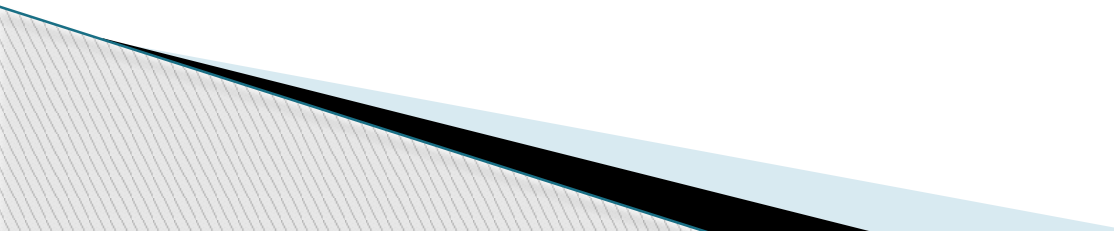
BSTI License

- ▶ Bangladesh Standards and Testing Institution (BSTI) is the authority in Bangladesh which gives certificate for standard of products.
- ▶ To ensure such quality and standard, Government of Bangladesh has setup BSTI and wants to safeguard the interest of consumer.
- ▶ BSTI issues such license after conduction test as to quality and conducts inspection time to time in the market whether the concerned manufacturer ensure quality as perceived, tested and certified by it.

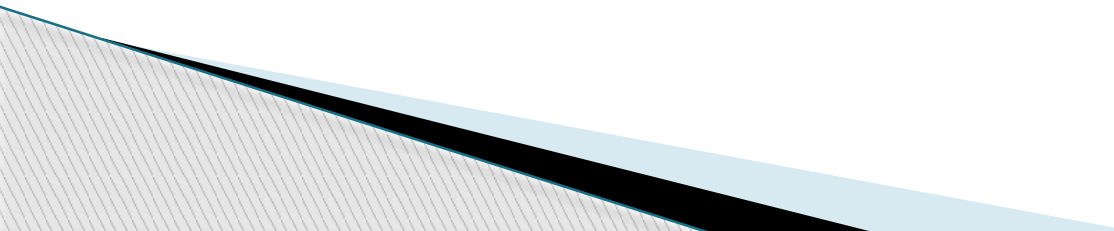
BSTI License

- ▶ Bangladesh Standards and Testing Institution (BSTI)
provide two kinds of product certification:
- ▶ a) Mandatory Certification
(List of mandatory certification products) where you cannot launch your product without a certificate from BSTI
- ▶ b) Voluntary Certification where you can launch your product but a BSTI certificate gives you extra credibility benefits.

Taxpayer's Identification Number (TIN) Certificate

- ▶ TIN is a unique number NBR (National Board of Revenue) provide if apply anybody.
 - ▶ At present about forty lac TIN Certificate holder in Bangladesh of which only eight lac pay tax.
- 

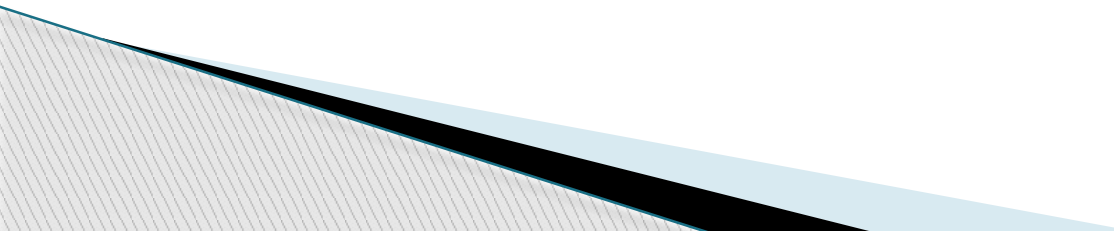
How do you get a TIN?

- ▶ Write an application to the Deputy Commissioner of Taxes of respective area showing why the TIN Certificate has needed.
 - ▶ Fill-up TIN Application Form.
 - ▶ Enclosed 2 copies of photographs
 - ▶ Enclosed photocopy of National ID/
photocopy of pass port
- 

eTIN registration which means Electronic Tax Identification Number

- ▶ This process will be done by online. NRB has published a circular about this matter.
- ▶ The old TIN is 10 digit numbers. But in the new system, **TAX Identification Number (TIN)** number will be a 12 digit number.
- ▶ All new taxpayer will get 12 digit number, also existing Tax payer also have to get new **12 digit TIN number**.

Registration of Value Added Tax (VAT)

- ▶ For VAT purposes, companies may be registered separately with the Customs, Excise, and VAT Commission (under the NBR).
 - ▶ VAT is to be paid on value added by manufacturer, Importer, Exporter, Traders at different stages of their working.
 - ▶ Online VAT registration has been just launched in BD
- 

Trade Mark Registration

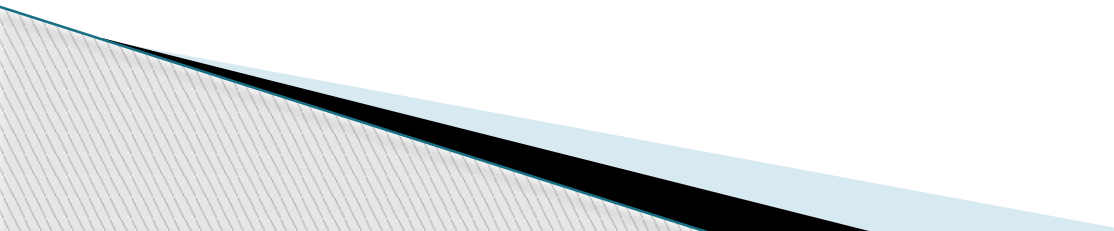
- ▶ A trademark is a **distinctive sign** which identifies certain goods or services as those produced or provided by a specific person or enterprise.
 - ▶ In Bangladesh trademarks and service marks are registered under The Trademarks Act-2009. Registration provides 7 years protection; it can be renewed every after 10 year on payment of renewal fees.
- 



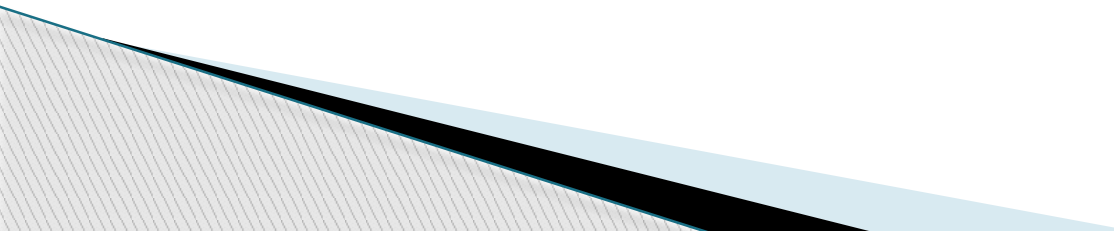
Patents and Designs Registration

- ▶ A patent is an exclusive right granted for an **invention**, which is a **product** or a **process** that provides, in general, a new way of doing something, or offers a new technical solution to a problem.
- ▶ Under the Patents and Designs Act -1911 patents are granted.
- ▶ Patents provide 16 years protection from the date of filing of the application.

Copyrights Registration

- ▶ It is a form of intellectual property (like the patent, the trademark, and the trade secret) applicable to any expressible form of an idea or information that is substantive and discrete.
 - ▶ Copyrights are protected for original intellectual work of literature, art, music, software, etc. under the copyrights Act – 2000 (Amended in 2005).
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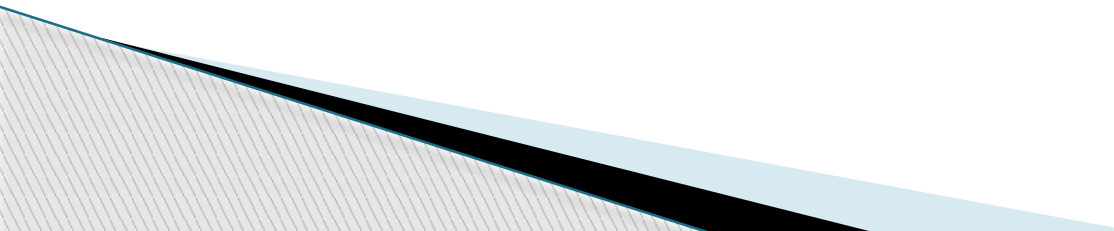
Export Registration Certificate (ERC)

- ▶ Export Registration Certificate is a certificate of license that is needed to be Exporters in Bangladesh
 - ▶ **Issuing Ministry:** Ministry of Commerce
 - ▶ **Name:** Office of Chief Controller of Imports and Exports (CCI&E)
 - ▶ **Address:** 111-113, Motijheel C/A, Dhaka 1000
- 

Export registration certificate

- ▶ For getting IRC following documents need to submit:
- ▶ Photocopy of trade license
- ▶ Copy of TIN
- ▶ Copy of MoA, and AoA in case of company
- ▶ Partnership agreement with registration copy
- ▶ Bank solvency certificate
- ▶ Main copy of treasury challen
- ▶ Three copies of photograph of owner
- ▶ Three copies of photograph of managing director
- ▶ Membership certificate from chamber of commerce
- ▶ National ID

Import Registration Certificate (IRC)

- ▶ Office of Chief Controller of Imports and Exports (CCI&E) works under Imports and Export (Control) Act, 1950.
 - ▶ It is responsible for: Issuing Import Registration Certificate (IRC) and Export Registration Certificate (ERC), Export and Import Permit, Monitoring and Evaluation of Import Statistics etc.
- 

Import registration certificate

- ▶ For getting IRC following documents need to submit:
- ▶ Photocopy of trade license
- ▶ Copy of TIN
- ▶ Copy of MoA, and AoA in case of company
- ▶ Partnership agreement with registration copy
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- ▶ Three copies of photograph of owner
- ▶ Three copies of photograph of managing director
- ▶ Membership certificate from chamber of commerce
- ▶ National ID

BOI registration process for foreign investors

- ▶ Immigration Procedure
- ▶ Modified Rules of Landing Permit / Visa on Arrival
- ▶ Incorporating a Company
- ▶ Memorandum of Association
- ▶ Articles of Association
- ▶ Registration with BOI
- ▶ Obtaining Industrial Plot
- ▶ Environmental Legislation
- ▶ Obtaining Utility Connections
- ▶ Human Resources and Employment
- ▶ Exchange Control & Remittance
- ▶ Living in Bangladesh

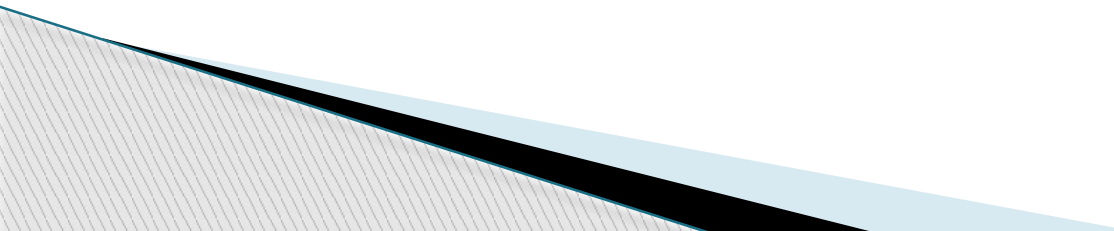
Permission from Department of Environment

- ▶ Protection of environment has become an important issue all over the world in recent years.
 - ▶ Permission of the Department of Environment is essential for establishing an industrial unit in any place in Bangladesh.
 - ▶ It may result in air pollution through noise or otherwise, cause water pollution through factory wastage & the like.
- 

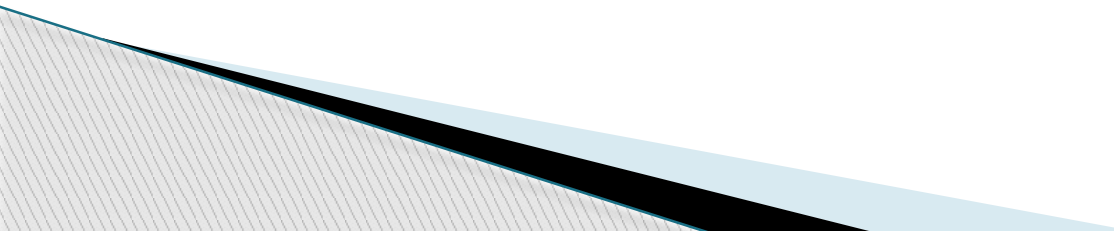
Connection of Utilities: Gas, Electricity, Water and Telephone

- ▶ Before installation of machinery we have to obtain the permission for connection of some utilities like gas, electricity and T&T.
- ▶ These utilities are essential for business houses, especially for industrial enterprises.
- ▶ Thus connection is to be taken through applying to respective authority and after payment of initial connection fees.
- ▶ Thereafter monthly bill is to be paid regularly for the continuation in operations and avoid over dues payment, fines and penalties.

Opening Bank Account

- ▶ As a part of business, we should open an account in one of our favorite banks.
 - ▶ There are various kinds of Bank Accounts which people are looking for.
 - ▶ These account's opening go through some procedure. Required information for opening a bank account varies from bank to bank.
- 

Kinds of Bank Account

- ▶ Sole Proprietorship Account
 - ▶ Limited Company Account
 - ▶ Partnership Firm Account
 - ▶ Foreign Currency Account Opening
- 

Membership of Chamber/Associations

- ▶ After having a TIN from Taxation Department you would have to be a member of respective chamber or association.
- ▶ Without the membership you will not be allowed to apply for Export Registration Certificate (ERC), Import Registration Certificate (IRC) etc.
- ▶ If you decide to start business at Dhaka, you should apply to get a membership in the Dhaka Chamber of Commerce and Industry.
- ▶ However, you may also be a member of particular Manufacture Association.



**Thanks to join with
us!**

Any Question?

